

26STCV01514 26STCV01514

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 26STCV01514 Hearing Date: September 3, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 31

HEARING DATE: September

3, 2026 TRIAL

DATE: Not set

CASE: Stephanie Oregel v. Movagar & Yamin, A Professional Law Corporation

CASE NO.: 26STCV01514

DEFENDANT'S MOTION TO QUASH SERVICE OF SUMMONS

MOVING

PARTY: Defendant Movayar & Yamin, a
Professional Law Corporation

RESPONDING

PARTY: Plaintiff Stephanie Oregel

I. INTRODUCTION

On January 15,

2026, Plaintiff,

Stephanie Oregel, filed this action against Defendant, Movagar & Yamin, a
Professional Law Corporation dba M&Y Personal Injury Lawyers, alleging FEHA,

wage and hour, whistleblower, and UCL causes of action.

On April 3, 2026, Plaintiff's registered process server served Defendant with the summons and complaint by substituted service. On the same day, the process server mailed the service of summons to Defendant by mail.

On June 24, 2026, Defendant filed this motion to quash service of summons.

On August 21, 2026, Plaintiff filed an opposition.

On August 27, 2026, Defendant filed a reply.

II. LEGAL STANDARD

Personal service may be accomplished by personally delivering a copy of the summons and complaint to the person to be served.¿ (Code Civ. Proc., § 415.10.)¿ If a copy of the summons and complaint cannot, with reasonable diligence, be personally delivered to the person being served, substitute service may be effected by leaving a copy of the summons and complaint at the person's "dwelling house, usual place of abode, usual place of business, or usual mailing address ... in the presence of ... a person apparently in charge ... and by thereafter mailing a copy of the summons and complaint by first-class mail ... to the person to be served at the place where a copy of the summons and complaint were left."¿ (Code Civ. Proc., § 415.20, subd. (b).)¿

III. DISCUSSION

A. Evidentiary Objections

Plaintiff asserts four objections to portions of the Declaration of Nick Movagar.

Objection No. 1 is SUSTAINED. Hearsay.

Objection No. 2 is OVERRULED.

Objection No. 2 is OVERRULED.

Objection No. 4 is SUSTAINED. Improper argument.

B. Timeliness

Plaintiff argues the motion is untimely. A defendant must file a motion to quash service of summons on or before the last day on which the defendant must plead unless the time is extended by stipulation or by a judge's order for good cause. (Code Civ. Proc., § 418.10, subd. (a).) Here, the motion was filed more than 30 days from the mailing of the service of summons. The motion is untimely.

Defendant argues the court "should decide the service issue on the merits, not deem service valid merely because Plaintiff says the disputed proof of service started Defendant's response clock." (Reply, p. 3:15-16.) In support, Defendant relies on *Olinick v. BMG Entertainment* (2006) 138 Cal.App.4th 1286. That reliance is misplaced. *Olinick* concerned whether the failure to schedule a hearing within the 30-day period as provided for Code of Civil Procedure section 418.10(b). That issue—a tardy hearing date—is not presented here.

The issue then, is whether good cause exists to extend the time to allow a motion to quash. Although the statute does not define "good cause," at least one California Court of Appeal has interpreted the good cause standard as equivalent to a showing under Code of Civil Procedure section 473. (*Kupka v. Board of Administration* (1981) 122 Cal.App.3d 791, 795.) Section 473 provides for relief from defaults, default judgments, and from "a judgment, order, or other proceeding ... taken ... through mistake, inadvertence, surprise, or excusable neglect."

Here, on April 3, 2026, Plaintiff mailed a copy of the summons and Complaint after subserving Defendant. (Proof of Service of Summons, filed 4/24/26.) Service of summons became effective on April 13, 2026. (See Code Civ. Proc., 418.10, subd. (a).) Defendant

states it received a copy of the Complaint on April 8, 2026. (Movagar Decl., ¶ 2.) Absent from Defendant's moving papers or reply is any showing of mistake, inadvertence, surprise, or excusable negligent to explain having filed this motion to quash more than 30 days after service of process became effective.

IV. CONCLUSION

Based on
the foregoing, the motion is DENIED.

Plaintiff
to give notice, unless waived.

Dated: September 3,
2026

Brock T. Hammond

Judge of the Superior Court